



Baltimore County Department of Health Guidelines for Retail Food Establishment Plans Review Submittals

Retail Food Service Facilities must comply with the Code of Baltimore County Regulation (COBCR) 1.01.01, Code of Maryland Regulations (COMAR) 10.15.03, Baltimore County Code, §35-2-201 and the International Building Code, 2012 Edition, which require that properly prepared plans be submitted and approved before a person constructs a food establishment, remodels or alters a food establishment, or converts or remodels an existing building for use as a food establishment. §21-321 of the Health-General Article of the Annotated Code of Maryland also has the same requirements. The plan review shall consist of an evaluation of the food handling operations, as well as the physical structure of the establishment. The following categories highlight some routine items for review:

For new construction and/or remodeling a completed building permit application and appropriate fee(s) must be submitted to:

Baltimore County Department of Permits, Approval, and Inspections
Building Inspections
111 W. Chesapeake Avenue, Room 100
Towson, Maryland 21204

For equipment review only (alterations and changes that do not require a building permit) plans must be submitted to:

Baltimore County Department of Health
Division of Environmental Health Services
6401 York Road, Third Floor
Baltimore, Maryland 21212

MATERIALS NEEDED FOR PLANS REVIEW

The following information is required initially. Additional information may be required based on future findings.

1. One set of plans (architectural, plumbing, mechanical, electrical) to include a finish schedule, air balance schedule, scaled and labeled fixture layout
2. Menu
3. HACCP plan
4. Equipment cuts sheets

Layout

- Evaluation of the flow of food through the facility, including adequate separation of raw and ready to eat foods during preparation and storage and separation of clean and soiled utensils and dishes.
- Capacity for cooling foods within the required time limitations (i.e., refrigeration space, sink for ice bath, blast chiller).

Equipment

- Equipment must have NSF or equivalent certification.
- Floor mounted equipment must have casters or legs.
- Counter mounted equipment weighing 80 pounds or more must be on legs (exceptions may be made on a case by case basis).
- Equipment must be protected against plumbing cross connections (i.e., water supply and waste are separate and back flow prevention is present).
- All equipment must have sufficient space to allow for cleaning on all sides.
- When uncovered food is placed on display in food operations, the ready-to-eat food must be protected by:
 1. Physical guards,
 2. Separation from potential contaminants, or
 3. Other effective methods acceptable to the approving authority. (COBCR 1.01.01.06C(6)).
- For char broilers over five square feet a discharge permit will be needed from the Maryland Department of the Environment (410-537-3230).
- Shelves over cooking equipment are not allowed.

Ventilation

- Overall, facility air balance must be slightly positive pressure. Kitchen can have slight negative pressure to keep odors from leaving kitchen.
- Restroom ventilation must be at least two cubic feet of air per minute per square foot of floor space.
- Rooftop exhaust fans must be located with a minimum separation of 10 feet from supply air intakes. If space limitations prevent this separation, the exhaust outlet must be installed at least 3 feet above any air intake less than 10 feet away horizontally.
- Grease hoods must be NSF approved and if UL tested, must provide at least the minimum exhaust according to the UL 710 listing.

Finishes

- Acceptable floor finishes in food and utensil areas: sealed concrete, ceramic tile, porcelain tile, quarry tile, epoxy resin, VCT if epoxy glued.
- The use of vinyl composite tile (VCT) in food preparation areas is discouraged as it tends not to provide a durable surface under wet and greasy conditions. If any vinyl composite tile is used, then the specifications for the installation of this floor material must be submitted.
- Floors shall be graded to drain in areas where water is flushed or fluid waste is received from equipment.
- Acceptable wall finishes in food and utensil areas: painted gypsum board, tile, fiberglass reinforced polyester (FRP) panels.
- Acceptable ceiling finishes in food and utensil areas: vinyl clad ceiling tiles, painted gypsum board, FRP panels.
- Drop ceiling panels should be non-perforated and not backed with fiberglass.
- All raw wood must be sealed.
- All annular spaces, wall and ceiling penetrations, and escutcheon plates must be sealed.
- Lighting in food storage areas, food preparation areas, utensil washing areas, locker rooms, garbage and rubbish storage areas, restrooms, and the walk-in units must be a minimum of 20 foot-candles at 30 inches off the floor.
- Lighting in food prep and storage areas, and equipment storage or washing areas must be shielded or shatterproof.
- Doors to the exterior and to the restrooms must be self closing.
- Dumpster storage surface areas must be sealed.

Plumbing

- An easily accessible hand sink is required for each food preparation, serving, or utensil washing area.
- Backflow prevention must be provided on the following pieces of equipment that are plumbed to a water line: ice machine, drink dispensers, soda fountain carbonator, hose bibb, dish machine, chemical dispensers, steamers, carbon filters, etc.
- Backflow preventers for carbonated beverage systems must have stainless steel and plastic construction.
- If a mop sink faucet is threaded and under continuous flow, then a backflow prevention device will be required (i.e., Watts N9C or equivalent device).
- Each compartment of all multi-compartment sinks must drain independently to a properly sized floor sink through an approved air gap.
- Drain lines may not be manifolded (e.g., at ice machine, ice bin, steam table, or multi-compartment sinks).

- Only clear waste from condensate lines may drain into a funnel or hub drain. All other equipment must drain through an approved air gap into an appropriately sized floor sink.
- All floor sinks must be accessible for cleaning and inspection.
- Trench drains must be sloped to drain.
- Piping and conduit located outside a wall must be installed to allow adequate space for cleaning between it and the wall.
- In-counter sinks must drain indirectly to a floor sink.
- Splash guards are required at a hand sink to protect against possible contamination of adjacent food or food contact equipment or food storage and prep areas.
- Grease interceptors must be installed in a manner acceptable to the approving authority.
- Approved grease abatement device installed within a facility must be NSF approved, electric and automatic.
- There must be a pre-rinse device for a spray type dish machine.
- Dish machine waste lines must be indirect, except when adjacent to and upstream of a trapped floor drain.
- Garbage grinders are not allowed except when located in a dedicated produce prep sink.

Millwork and Cabinetry

- All floor mounted millwork must be constructed on 6 inches NSF approved legs. No enclosed bases permitted. The use of clip-on kick plates is acceptable.